

SALE BY DESIGN
HOMES

SET. *THE*. STAGE.

We are *Melbourne's premier home staging* company, delivering furniture packages daily across Melbourne and helping sellers present their properties at their very best.

Date: 10/06/2026

Property Address: 525 Collins Street Melbourne (Rialto Towers – Wellness Centre)

Dear Ian,

Thank you for your interest in Sale By Design Homes.

We are pleased to present a tailored quotation based on your project requirements.
Please find the details outlined below.

***Special Order* – All Items Will Be Brand New and Assembled on Site.**

Total RRP Value: \$6,467.00

Wellness Centre

Furniture Type	Quantity
Dino Armchair - Mocha	3
Harris Side Table	5
Ceasar Lined Cream Rug	2
Solid Wood Sorrento Walnut Side Table	3
Delivery, Assembly and Removal of Styling Goods upon end of lease	1

TOTAL COST FOR 6 WEEKS

Total Coast INC GST	\$3,980.00
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AUTHORITY TO FURNISH QUOTATION NUMBER:

525 Collins Street Melbourne (Rialto Towers – Wellness Centre)

To secure your booking please sign and fill out the authority document below.

*Alternatively, if you are unable to sign electronically or scan the document, please provide the details under “hirer details” and “property owner details” and respond “I accept” via email.

Payment must be made prior to furniture delivery. When making a direct deposit you **MUST** fill in the property address as a quotation number.

Bank receipt must be sent to deshan@salebydesignhomes.com.au 2-5 days prior to installation.

	Customer Details	Property Registration Details	Furniture Hire & Style Details
Name			
Address			
Suburb			
Postcode			
Telephone			
Mobile			
Email			

FURNITURE HIRE & STYLE DETAILS

Furniture to be Installed on:
Property Photos will be taken on:
Time:

PAYMENT DETAILS:

Account Name: Invita Pty Ltd ATF Invita
Unit Trust T/AS Sale By Design Homes
BSB: 033 501
Account Number: 243941
Quote:

Client Name: [Name]

Signature:

Date: 00 / 00 / 2026

TERMS AND CONDITIONS

NOTES:

1. Sale By Design Homes (A.B.N. 68 196 770 202) (the "Business") is the proprietor of the furniture listed in the Authority to Furnish Form (the "Form") annexed to these Terms and Conditions.
2. The Hirer shall be the Hirer hiring the furniture identified in this Agreement.
3. The Hirer will hire the furniture specified in the Form from the owner upon the terms and conditions herein.
4. By signing these Terms and Conditions you, the Hirer, acknowledge and agree to enter into a formal contractual agreement between yourself (the Hirer) and the Business, to rent the furniture described in the Form.

1. DEFINITIONS

- 1.1. **"Agreement"** means this Agreement, the Authority to Furnish Form has varied from time to time.
- 1.2. **"Authority to Furnish"** means the form titled Authority to Furnish annexed to these terms and conditions which may vary from time to time.
- 1.3. **"Business"** means Sale By Design Homes.
- 1.4. **"Bond"** means the sum specified in the Form to be paid upfront to the Business and held for the period of the Hire and for any longer period until such time as the Business is satisfied to release the monies in accordance with clause 4 set out herein.
- 1.5. **"Furniture"** means the furniture listed in the Authority to Furnish Form provided to the Hirer pursuant to this Agreement.
- 1.6. **"Hirer"** means any persons listed in the Authority to Furnish Form annexed to these terms and conditions.
- 1.7. **"Hire Period"** means the period of Hire specified in the Authority to Furnish Form.
- 1.8. **"Installation Date"** means the date specified in the Authority to Furnish Form.
- 1.9. **"Return Date"** means the date specified in the Authority to Furnish Form.

2. INTERPRETATION

- 2.1. In this Agreement, unless the context otherwise requires:
 - 2.1.1. A reference to the singular includes the plural and vice versa;
 - 2.1.2. A reference to any party to this Agreement includes the Party's executors, administrators, successors or permitted assignees, and where applicable, its servants and agents;
 - 2.1.3. A reference to an individual shall include corporations and vice versa;
 - 2.1.4. If a word or expression is defined, its other grammatical forms have a corresponding meaning; and
 - 2.1.5. Notes 1 to 4 form part of this Agreement.
- 2.2. In this Agreement, headings are for convenience only and do not affect interpretation.

3. FURNITURE HIRE

- 3.1. The hiring of the furniture will commence from the commencement date specified in the Form and continue for the term specified therein.
- 3.2. The Hirer is entitled to use the furniture for the hire period and for any agreed extension of

the hire period.

3.3. The minimum hire term is six (6) weeks and no refund will be provided if the Hirer's property is sold before the end of the six (6) weeks period.

3.4. Should the Hirer's property be sold unconditionally within the minimum hire term, the Business may elect to remove the furniture from the premises and the Hirer must make the furniture available for such removal.

3.5. The Hirer agrees to make the furniture available for collection by the Business on the Return Date specified on the Form.

3.6. The Hirer acknowledges that the furniture hire is subject to the furniture not being removed from the nominated premises and any such removal will constitute a breach of this Agreement.

3.7. The Business will not refund any hire monies if the Hirer elects to return the furniture prior to the end of the hire period and the Hirer is liable for full payment of all moneys during the hire period.

3.8. The furniture placed in the premises are for display purposes only and not intended for personal use.

3.9. The Hirer must insure that the premises is clean and clear of debris in preparation of furniture installation under this Agreement. In the event the Hirer has not cleaned the premises prior to installation, an additional cleaning charge of \$120.00 per hour will be incurred in order to allow the Business to clean the premises. Such payment is in addition to the quoted fee and must be paid immediately upon demand.

4. CHARGES, DEPOSIT AND BOND

4.1. The Hirer will pay to the Business the daily hire rate, any/or minimum daily hire fee, any/or bond as set out in the Form from and including the Commencement Date and to and including the termination date.

4.2. The Hirer must pay to the Business the Bond and the total rental monies forty eight (48) hours prior to the delivery of furniture.

4.3. The Business may require the payment of a Deposit at its discretion.

4.4. In the event that the Business does not charge a Deposit, the Hirer must compensate the Business for any damages caused by the Hirer (other than fair wear and tear).

4.5. In the event of a long term rental at the consent of the Business, a rental plan may be set up so that the rental payment may be paid on a weekly, monthly or yearly plan with the Business. In the event the Hirer is on a rental plan with the Business, and payments are not made by the due date, the Hirer will be charged a \$30.00 fee for each missed or late payment.

4.6. The Business will accept the following payment methods:

4.6.1. Cash;

4.6.2. Visa Card

4.6.3. Mastercard; and

4.6.4. Other methods upon Business approval.

4.7. In the event that payment is made by Credit Card a surcharge of 1.5% applies for Visa and MasterCard and for an American Express a surcharge of 2% applies.

4.8. In its sole discretion, the Business may charge for the cost of delivering or collecting the furniture from the Hirer.

4.9. The Hirer authorises the Business to charge the Card (Credit/Debit, Visa/Mastercard) provided by the Hirer upon hiring the furniture for the security bond, with any additional amount owed by the Hirer up to 30 days after the furniture has been collected.

4.10. The Hirer guarantees that in the event the Card is not in the Hirer's name, the Business has authority to place such charges as specified under clause 4.6 above.

- 4.11. The Business will issue an invoice for the charges, including if applicable those charges in clauses 4.2 and 4.3, which invoice is to be paid by the Hirer within seven (7) days.
- 4.12. If required by the Business, the Hirer is to provide the deposit or bond listed in the Form prior to or on the Commencement Date:
- 4.12.1. The Business will refund the Deposit or bond (if any) to the Hirer promptly following the Hirer's performance of all obligations under the Agreement;
- 4.12.2. Where any Charges are due and payable by the Hirer under this Agreement at the termination of the Agreement, the Hirer authorises the Business to deduct those charges from the Deposit or Bond;
- 4.12.3. If the Deposit or Bond is insufficient to cover the Charges in 4.9.2., or no Deposit or Bond is held, the Hirer authorises the Business to deduct the sum from the Credit Card, the details of which have been provided to the Business by the Hirer. If there is no credit card available, the Hirer agrees to make payment of those charges within seven (7) days of demand by the Business;
- 4.13. If the Hirer fails to or refuses to make payment of an invoice issued by the Business under this Agreement within seven (7) days of the invoice or otherwise described in the Agreement or invoice:
- 4.13.1. The Hirer be charged the late payment fee charged at the rate of 20% of the amount owing plus the outstanding balance.
- 4.14. In the event the Hirer has not paid the Business following 28 days of such payment falling due:
- 4.14.1. The Hirer will be liable to the Business for all of its costs and expenses, including legal costs, in enforcing its right to payment of the Invoice;
- 4.14.2. The Business will forward, in accordance with the Business' Privacy Policy, the Hirer's information to a third party debt collection service.
- 4.14.3. Interest on the overdue amount will accrue at a rate of 20% per annum until payment.

5. USAGE OF GOODS

- 5.1. The Hirer will be entitled to use the furniture for display purposes only during the Hire Period subject to the terms and conditions of this Agreement.
- 5.2. The Hirer will not:
- 5.2.1. Remove the furniture from the premises specified in the Form;
- 5.2.2. Repair or attempt to repair, conceal or otherwise, any damage to the furniture caused by the Hirer and/or during the course of the rental agreement;
- 5.2.3. Use the furniture recklessly, negligently or with any intent to cause injury, loss or damage.
- 5.3. The Hirer must ensure the physical safety and proper care of the furniture delivered to the premises.
- 5.4. The Hirer must provide the Business with five (5) business days' notice to arrange the collection of the furniture prior to the end of this Agreement.
- 5.5. The Hirer agrees to provide the Business, its agents or employees reasonable access to the premises, at all times, for the purpose of inspection, repair, adjustments and/or collection.
- 5.6. The Hirer agrees that upon the termination of this Agreement on the Return Date specified in the Form, the goods will be in the same condition as at the commencement of this Agreement (except fair wear and tear).

6. LIMITATION AND EXCLUSION

- 6.1. To the full extent permitted by law, the Hirer releases, discharges and indemnifies the Business from all claims and demands on the owner arising out of or consequent on the use or misuse of the furniture during this Agreement.
- 6.2. The Hirer indemnifies the Business against any liability, loss, damage, costs or expenses

incurred or suffered by the Business arising directly or indirectly out of or in connection with:

6.2.1. Any breach of the Agreement, any breach of any laws, or any act or omission on the part of the Hirer or its officers, employees, representatives or agents;

6.2.2. Any action for trespass resulting from the Business entering the Hirer's Address or any other address should the furniture be abandoned or removed from the premises by any means, to repossess the furniture;

6.2.3. By signing this Agreement, the Hirer acknowledges that use of the furniture incorrectly or correctly, may involve a risk of injury or harm. The Hirer acknowledges and accepts that risk.

6.3. The Hirer will assume all risks and liabilities for and in respect of the furniture and for all injuries to or deaths of persons and any damage to property however arising from the Hirer's possession, use, maintenance, repair or storage of the furniture.

6.4. To the extent permitted by law, the Business disclaims all liability for and does not give any warranties to the Hirer as to the condition of the furniture.

6.5. The Hirer acknowledges and agrees that on the commencement of this Agreement, the Hirer completed an inspection of the furniture to ensure its quality.

6.6. The Hirer acknowledges that should any furniture be damaged upon inspection that the Hirer will immediately notify the Business of such damaged and arrange for collection of the furniture.

6.7. The Business will install painting hooks upon the styling of the property to hang paintings. At the end of the contract and at the removal of the art-work the hooks hammered into the wall will not be removed.

6.8. It is the responsibility of the Hirer to remove the painting hooks at the end of the contract. Any damage done to the walls due to the painting hooks is not the responsibility of the Business.

6.9. The Hirer acknowledges that should there be any damage to the walls due to the painting hooks, the Business is not liable for any damage.

7. LOSS, DAMAGE, THEFT OF FURNITURE

7.1. If, during the Hire Period, the furniture is stolen, the Hirer must:

7.1.1. Immediately notify the Business and act according to instructions given by the Business;

7.1.2. Immediately report the theft to the Police and provide a copy of the report to the Business;

7.1.3. Permit the Business or its insurer to bring, defend, enforce or settle any legal proceedings in the Hirer's name.

7.2. The Hirer will be responsible both financially and legally for any loss, damage or theft to/of the furniture irrespective of how the loss, damage or theft occurred during the Hire Period and shall be responsible for repair/replacement costs of the furniture.

7.3. If, during the Hire Period, the furniture is damaged or loss is suffered, the Hirer must:

7.3.1. Immediately notify the Business and act according to instructions given by the Business;

7.3.2. Not make any offer, promise of payment, settlement or admission of liability to any other party;

7.3.3. Permit the Business or its insurer to bring, defend, enforce or settle any legal proceeding in the Hirer's name;

7.3.4. Pay the Business a sum equal to cover the repair (including scratches and dents), or replacement of the furniture, noting that this sum may be deducted from the Deposit; and

7.3.5. Pay the Business interest calculated at the rate of 15% on any/all outstanding repair or replacement costs. This clause will also apply if the outstanding repair or replacement costs are less than the insurance excess amounts.

7.4. The Business can use its preferred repairer or other third party Business for repair, or

replacement of the furniture with such costs of repair, or replacement of the furniture borne by the Hirer and the Hirer acknowledges same.

8. DAMAGE TO PROPERTY

8.1. The Hirer is liable for damage to the property of any person which is caused or contributed by the Hirer or which arises from the use of the furniture by the Hirer or any other person.

8.2. If the Hirer or the Hirer's Personnel damage property whilst hiring the furniture, the Hirer must promptly:

8.2.1. Make good the damage; and

8.2.2. Pay any compensation which the Hirer is required to pay under any legal requirement.

9. INSURANCE

9.1. The Hirer is required to obtain Public Liability Insurance for the duration of this Agreement.

9.2. The Hirer hereby indemnifies the Business in relation to any and all claims against the Business, including, but not limited to, claims in relation to damage, personal injury and loss throughout the duration of this Agreement.

10. TITLE TO GOODS

10.1. The Hirer acknowledges that the Business retains all title to the furniture and that the Hirer has rights to use the furniture as a mere bailee only. The Hirer does not have any right to pledge the owner's credit in connection with the goods and agrees not to do so.

10.2. The Hirer will not offer or purport to sell, assign, sub-let, lend, pledge, mortgage, let or hire or otherwise part with or attempt to part with personal possession or otherwise not to deal with the furniture and not to conceal or alter the goods or make any addition or alteration to, or repair of, the furniture.

11. DEFAULT EVENTS

11.1. The Hirer will be in default if:

11.1.1. It breaches any of its obligations under this Agreement and fails to remedy such breach within seven (7) days of being requested by the Business to do so;

11.1.2. It breaches any essential term of this Agreement;

11.1.3. Where the Hirer being a corporation is insolvent, is wound-up or goes into liquidation or has an Administrator appointed to it or had a Receiver appointed over any of its assets;

11.1.4. Where the Hirer is a natural person, he or she is or becomes insolvent or makes an assignment for the benefit of his or her creditors or commits an act of bankruptcy under the *Bankruptcy Act 1966* (Cth) or is declared bankrupt.

11.2. On the happening of a Default Event, the Business may, without prejudice to any of its other rights either under these Terms or at law and without previous notice to the Hirer, enter any site where the Business believes the furniture to be located, re-possess it and the Hirer hereby agrees not to make any claim or bring any action against the Business as a result of the re-possession of the furniture.

11.3. The Hirer agrees to indemnify the Business and keep the Business indemnified against any loss or liability, expense or cost which might be incurred by the Business in entering upon the site and taking possession of the furniture. Such indemnity covers any liability to any third party for trespass or for damage to the site occasioned through the entry upon the site, the re-possession of the furniture or its removal from the site by or on behalf of the Business.

11.4. In the event of a default by the Hirer, the Hirer will be liable to pay the Business' legal fees

incurred in relation to such default.

12. TERMINATION

12.1. This Agreement may be terminated and cancelled forthwith by the Business upon giving notice in writing of not less than 24 hours to the Hirer:

12.1.1. If the Hirer breaches these terms and conditions and fails to remedy such breach within seven (7) days of receiving notice from the Business;

12.1.2. The Hirer becomes insolvent or has an insolvency event occur;

12.1.3. Any director of the Hirer becomes insolvent.

12.2. Subject to clause 12.1 above, the Agreement will terminate when the Business agrees and when the furniture is collected by the Business.

12.3. If the Hirer cancels this Agreement after bond money is taken or during the Hire Period for any reason:

12.3.1. A \$30.00 fee will be deducted from the Hirer's Bond money as a cancellation fee;

12.3.2. If the Hirer still has any outstanding payments to be made at the end of the rental, after seven (7) days, a further 20% interest will be charged on any such remaining balance owed and deducted from the Hirer's credit card, account or bond;

12.3.3. After twenty eight (28) days, should the Hirer not make full payment of outstanding monies owing to the Business, the Business will refer the Hirer to a third party debt collection Business and the Hirer will be liable for all of the Business's fees associated with such process; and

12.3.4. If the term of the Agreement is up to and including three (3) weeks or more and cancelled at any stage of the Agreement, the Hirer acknowledges that the bond money will not be returned.

12.4. If the Hirer cancels the Agreement on the day of Hire or within twenty four (24) hours from commencement for any reason:

12.4.1. A 20% fee ("Cancellation Fee") will be deducted from the total amount charged under the Agreement;

12.4.2. In the even the Hirer has not been required to pay a Bond, the Hirer must immediately make payment of the Cancellation Fee.

13. REPOSSESSION

13.1. The Business may retake possession of the furniture if the Hirer breaches any provision of this agreement, notwithstanding anything else herein contained.

13.2. If repossession takes place, the Business shall only charge the hire fee up to and including the time of repossession and any such costs of repossession.

13.3. In the event the Hirer is on a long term rental Agreement, and fails to make payment despite such Agreement, the Business is authorised to collect the furniture at any such time.

14. COMPLETION OF THE HIRE PERIOD

14.1. The Hire Period is completed when the furniture is collected by the Business:

14.1.1. In the same condition as when it was hired; and

14.1.2. On or by the date and time outlined in the Form.

15. PRIVACY

15.1. The Business is committed to safeguarding the Hirer's privacy by ensuring information is protected in accordance with the requirements of the *Privacy Act 1988*(Cth) ("the Privacy Act").

15.2. The Business collects personal information about the Hirer as part of its verification process. The type of information the Business may collect include name, address, telephone number, licence and/or other forms of photo identification (e.g. passport), financial information (including credit/debit cards), address identification (e.g. utility bill, Medicare etc.)

15.3. The Hirer acknowledges and consents to the Business collecting, using and disclosing the Hirer's personal information as reasonable permitted by law.

15.4. The Hirer acknowledges that the Credit Card details provided to the Business will be held for a period of time until the Business is satisfied that the furniture has been collected/returned and all debts of the Hirer are settled.

15.5. In the event the Hirer does not consent to providing such personal information as the Business requires, the Hirer acknowledges that the Business may not be reasonably satisfied in entering into this agreement with the Hirer.

15.6. The Hirer has the right to correct information if it is not accurate, up to date or complete.

15.7. The Hirer may request the Business to remove information from the Business records and the Business shall do so securely should all debts be settled.

15.8. The Business may disclose the Hirer's personal information to the Business service providers that are used in the ordinary operation of the Business, or as otherwise permitted by law or due to theft, damage or debt collection services.

15.9. If the Hirer's personal information is disclosed to any third parties, the Business will use its best endeavours to ensure such personal information is used in a manner consistent with this privacy policy.

15.10. The Business will not accept liability for any misuse of the Hirer's personal information by third party organisations or individuals.

15.11. By executing this Agreement, the Hirer acknowledges reading such Privacy Policy in this clause 15 and accepts such Policy.

16. SEVERANCE

16.1. If any provision of this Agreement is wholly or partly invalid, unenforceable, illegal, void or voidable, this Agreement must be construed as if that provision or part of a provision had been severed from this Agreement and the parties remain bound by all of the clauses and sub-clauses remaining after severance.

17. VARIATION TO AGREEMENT TERMS

17.1. None of the terms of the Agreement shall be varied, waived, discharged or released either at law or in equity, except by the express written agreement of the Business.

18. GOVERNING LAW

18.1. This Agreement is governed by the laws of Victoria. Each party submits to the non-exclusive jurisdiction of any courts or tribunals exercising jurisdiction there in connection with matters concerning this Agreement.

19. ENTIRE AGREEMENT

19.1. This Agreement includes the Form and the 19 clauses of these Terms and Conditions that is assumed accepted if not initialled on each page.

19.2. This Agreement constitutes the entire Agreement between the Hirer and the Business

with respect to this rental arrangement. No modification shall be made to this Agreement unless in writing and duly signed by both the Hirer and the Business.